

Court No. - 9

Case :- WRIT - C No. - 27879 of 2022

Petitioner :- Chief Engineer, 33/11 K.V. Quarsi, Electricity Department, Aligarh And Another

Respondent :- Jhamman Singh And Another

Counsel for Petitioner :- Alok Mishra

Counsel for Respondent :- C.S.C.

Hon'ble Prakash Padia,J.

The petitioner has preferred the present petition inter-alia with the prayer to quash the impugned order dated 16.07.2022 passed by Permanent Lok Adalat in P.L.A. Case No. 86 of 2020, (contained as Annexure No.1 to the writ petition).

It is argued that though in the electricity Act, 2003 and Electricity Supply Code 2005, the complete procedure has been prescribed and in the facts and circumstances of the case, the complainant should approach the Electricity Department before approaching the Permanent Lok Adalat and without approaching the appropriate authority, any approach to the another forum is not permissible in law. It is further argued that though various arguments were raised by the petitioners before the P.L.A. but that arguments was not taken into consideration.

Matter requires consideration.

Learned Standing Counsel accepted notice on behalf of respondent no. 2.

Issue notice to respondent no.1. Steps be taken within a period of ten days.

Counsel for the respondents are granted six weeks' time to file counter affidavit. Petitioner will have two weeks' thereafter to file rejoinder affidavit.

List after the exchange of affidavits.

Until further order of this Court, the effect and operation of the impugned order 16.07.2022 passed by Permanent Lok Adalat in P.L.A. Case No. 86 of 2020, (contained as Annexure No.1 to the writ petition), shall remain stayed, provided the petitioner to deposit entire amount of the award with the Permanent Lok Adalat, within a period of **one month** from today. Out of the aforesaid amount, Permanent Lok Adalat is directed to transmit 50% of the aforesaid amount to the respondent no. 1 namely Jhamman Singh without furnishing any security, forthwith. The remaining 50% amount shall be deposited in the form of fixed deposit in a nationalized Bank.

Order Date :- 16.9.2022

Swati

Court No. - 5

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Aligarh And Another

Respondent :- Jhamman Singh And Another

Counsel for Petitioner :- Alok Mishra

Counsel for Respondent :- C.S.C., Chandan Singh

Hon'ble Piyush Agrawal, J.

As prayed list after four weeks.

Order Date :- 25.8.2023

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